

Minister for Industrial Relations Directive: Leave without Salary Credited as Service

1. Purpose:

To prescribe the entitlements for leave without pay being credited as service for leave and salary purposes.

2. Effective date: 30 September 2024

3. Legislative authority:

- 3.1 Section 223 of the *Public Sector Act 2022* (PS Act).
- 3.2 Section 228 of the PS Act outlines the relationship between a directive and an Act or subordinate legislation, including how to deal with inconsistencies.
- 3.3 Section 229 of the PS Act outlines the relationship between a directive and industrial instrument, including how to deal with inconsistencies.

4. Application:

- 4.1 This directive applies to industrial instrument employees (i.e. employees who are covered by an award, certified agreement or arbitration determination) who are:
 - (a) public service employees; or
 - (b) public sector employees employed under the establishing legislation¹ of the following entities:
 - (i) Queensland Health;²
 - (ii) Hospital and Health Services;
 - (iii) Queensland Building Construction Commission;
 - (iv) Queensland Building Construction Commission Employing Office;
 - (v) Queensland Fire and Emergency Services (other than auxiliary fire officers);
 - (vi) Residential Tenancies Authority;
 - (vii) Residential Tenancies Employing Office;
 - (viii) Trade and Investment Queensland; or
 - (ix) Office of the Queensland Integrity Commissioner.
- 4.2 This directive does not apply to casual employees.

¹ For example, the establishing legislation of the Queensland Building and Construction Employing Office is the *Queensland Building and Construction Commission Act 1991*.

² For avoidance of doubt, this includes Health Service Employees employed by Queensland Health (Department of Health) but does not include Queensland Ambulance Service employees appointed under the *Ambulance Service Act 1991*.

5. Entitlement

- 5.1 Employees are to have leave without salary credited as service for leave and salary purposes as provided in this directive.
- 5.2 Where multiple types of leave without salary are accessed consecutively within any continuous period, entitlements are based on and restricted to those available under the initial leave type taken.

LEAVE CREDITED AS SERVICE				
Type of leave without salary	Period of leave without salary recognised for:			
	Recreation leave	Sick leave	Long service leave	Salary increments
Sick leave (1)	The first 3 months of any continuous period.	The first 3 months of any continuous period.	The first 3 months of any continuous period.	The first 3 months of any continuous period.
Parental leave (2)	The first 3 months of any continuous period.	The first 3 months of any continuous period.	The first 3 months of any continuous period.	The first 3 months of any continuous period.
Special leave	The first 3 months of any continuous period.	Any continuous period not exceeding 9 working days (3).	Any continuous period not exceeding 9 working days (3).	Any continuous period not exceeding 1 month (3).
Purchased leave (5)	The first 3 months of any continuous period.	Any continuous period not exceeding 9 working days (3).	Any continuous period not exceeding 9 working days (3).	Any continuous period not exceeding 1 month (3).
Study leave; residential school; attendance leave; and SARAS leave.	The first 3 months of any continuous period.	Any continuous period not exceeding 9 working days (3).	Any period provided that the course of study is successfully completed. For cash equivalent purposes successful periods of study shall only be recognised in the case of retirement under sections 164 and 107 of the PS Act, retrenchment under section 147 of the PS Act or in the case of death.	Any continuous period not exceeding 1 month. (3) OR Any period where a Staff Scholarship, equal to part or full salary is granted.
Special leave to undertake service overseas with the Australian Volunteers International	The first 3 months of any continuous period.	Any period	Any period	Any continuous period not exceeding 1 month (3).

LEAVE CREDITED AS SERVICE				
Type of leave without salary	Period of leave without salary recognised for:			
	Recreation leave	Sick leave	Long service leave	Salary increments
Special leave to claim Workers' Compensation (4)	Any period.	Any period.	Any period.	Any period.
Defence Reserve Forces leave	The first 3 months of any continuous period.	The first 3 months of any continuous period.	Any period.	The first 3 months of any continuous period.

- (1) An employee on unpaid sick leave, who is receiving Income Protection, receives entitlements associated with unpaid sick leave.
- (2) An employee on unpaid parental leave (a form of parental leave) continues to receive entitlements associated with this leave as well as entitlements due when working as a casual employee whilst on unpaid parental leave. These two contracts of employment are mutually exclusive and the entitlements accrued under the second (casual) contract cannot be transferred to the first contract of employment. Flexible parental leave is considered a type of parental leave for the purposes of this directive.
- (3) Where the total period of continuous leave exceeds the specified period, the total period of leave shall not be credited as service.
- (4) Where an employee returns to work on a graduated "suitable duties program" and is paid by the employer (i.e. is not receiving workers' compensation benefits paid by the insurer under the *Workers' Compensation and Rehabilitation Act 2003*) the employer is to credit attendance at work for leave purposes in accordance with the relevant directive.
- (5) Leave credited as service when an employee is on Purchased Leave arrangements shall be based on actual leave absences, not on the cumulative leave period over the length of the cycle.

6. Definitions

Except where otherwise defined, terms in this directive are consistent with their meanings in the *Industrial Relations Act 2016* and/or the *Public Sector Act 2022*.

Employee means an employee to whom this directive applies.